

VCU321658 Lal, Chaman vs. Singh, Avtar

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-07-07

Motion: Motion to Adopt Appraised Value

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Re: Lal, Chaman vs. Singh, Avtar

Case No.: VCU321658

Date: July 7, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Motion to Adopt Appraised Value

Tentative Ruling: To grant the motion and hold the required hearing as to the value.

Facts

The verified complaint in this matter seeks partition as to two properties.

The Court previously granted Plaintiff's motion to appoint an appraiser, appointed Jake Hower and held a hearing as to the appraisal value of the property at issue. Jake Howser agreed to appraise the property at 770-778 E. Date Avenue, Porterville CA (The Multi-Family Property).

At his suggestion, Rachel Unger agreed to appraise the Property at 814. E. Date Avenue, Porterville, CA (The Gas Station Property).

On April 27, 2026, Plaintiff lodged a copy of the appraisals with the court and filed a notice of election to purchase Defendant's interest in the Multi-Family Property at the appraised value.

The Multi-Family Property was valued at \$400,000, and the Gas Station Property was valued at \$2,850,000 inclusive of the property, the business enterprise, furniture, fixtures, and equipment, but not the business inventory.

On April 29, 2026, Defendant dismissed the cross complaint's first cause of action for partition.

On June 5, 2026, Plaintiff filed this motion to adopt the appraised fair market values of both the Multi-Family Property and the Gas Station Property pursuant to Code of Civil Procedure section 874.316(f) and (g).

In opposition, Defendant agrees as to the collective appraised values but "opposes the motion's attempt to have the Court determine that Singh is seeking a partition by sale that would subject him to Civil Procedure § 874.317(a). Singh's cause of action for partition by sale in the Cross Complaint was dismissed prior to the filing of this motion to adopt the appraised values. The dismissal was timely and acts as a reset."

Further that, under *Guttman v. Guttman*, 72 Cal. App. 5th 396, 408, "the issue is not properly before the Court and no orders on the issue should be made" as to a buyout proceeding.

Finally, that "Based on the pleadings in their current state, Civil Procedure § 874.317(a) does not apply. Instead, the Court should follow Civil Procedure § 874.317(d) as both the Plaintiff and Defendant each wish to purchase the Subject Properties."

Authority and Analysis

Code of Civil Procedure section 874.316(f) states:

"If an appraisal is filed with the court pursuant to subdivision (d), the court shall conduct a hearing to determine the fair market value of the property..."

Further, Code of Civil Procedure section 874.316(g) states:

"After a hearing under subdivision (f), but before considering the merits of the partition action, the court shall determine the fair market value of the property and send notice to the parties of the value."

Therefore, the Court intends to hold the hearing under subdivision (f), finding that the appraisal was filed with this Court in order to determine the fair market value of the two properties and thereafter determine the fair market value pursuant to subdivision (g).

As to the opposition, the Court does not find either citation impacts the determination of the fair market value of the Subject Properties pursuant to the ordered appraisals. Further, Defendant does not appear to contest the appraised value. It appears both parties wish to purchase the properties and the court is willing to discuss a procedure to facilitate that sale to the highest bidder.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.